DATED: 2021-01-01

SHEFFIELD CITY COUNCIL (1) and HALLAMSHIRE URBAN REGENERATION DEVELOPMENTS LTD (2)

PLANNING OBLIGATION BY DEED OF AGREEMENT PURSUANT TO SECTION 106 TCPA 1990

Planning Application Reference: 21/04512/FUL

Development Site: Kelham Riverside Foundry Quarter, Green Lane, Sheffield S3 8SJ

Electoral Ward: Walkley | Permitted Dwellings: 240

1. DEFINITIONS AND INTERPRETATION

'BCIS Index' means the All-in Tender Price Index published by BCIS / RICS.

'RPI' means the Retail Prices Index (All Items, ONS Series CHAW).

'CPI' means the Consumer Prices Index (All Items, ONS Series D7BT).

'Index Linked' means increased in proportion to the Index from 2021-01-01.

STANDARD SHEFFIELD S106 MODEL PROVISIONS (PAGE 2)

Clause 2.1: Late payment interest accrues at 4% above Bank of England base rate.

Clause 2.2: Written notice required 14 days prior to Occupation thresholds.

STANDARD SHEFFIELD S106 MODEL PROVISIONS (PAGE 3)

Clause 3.1: Late payment interest accrues at 4% above Bank of England base rate.

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STANDARD SHEFFIELD S106 MODEL PROVISIONS (PAGE 4)

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STANDARD SHEFFIELD S106 MODEL PROVISIONS (PAGE 5)

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STANDARD SHEFFIELD S106 MODEL PROVISIONS (PAGE 7)

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STANDARD SHEFFIELD S106 MODEL PROVISIONS (PAGE 8)

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STANDARD SHEFFIELD S106 MODEL PROVISIONS (PAGE 9)

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STANDARD SHEFFIELD S106 MODEL PROVISIONS (PAGE 10)

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STANDARD SHEFFIELD S106 MODEL PROVISIONS (PAGE 11)

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STANDARD SHEFFIELD S106 MODEL PROVISIONS (PAGE 12)

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STANDARD SHEFFIELD S106 MODEL PROVISIONS (PAGE 17)

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SCHEDULE OF DEVELOPER COVENANTS (21/04512/FUL)

Schedule 1, Part 2, Paragraph 4.1 - Off-Site Affordable Housing Commuted Sum (First Tranche) [OBL-21-04512-01]

Category: AFFORDABLE_HOUSING | Base Sum: GBP 450,000.00 | Indexation: BCIS (2021-01-01)

The Owner covenants with the Council to pay 50% of the Affordable Housing Commuted Sum (GBP 450,000 Index Linked in accordance with the BCIS All-in Tender Price Index from the date of this Deed) prior to the Occupation of the 50th Market Dwelling constructed on the Site.

Schedule 1, Part 2, Paragraph 4.2 - Off-Site Affordable Housing Commuted Sum (Second Tranche) [OBL-21-04512-02

Category: AFFORDABLE_HOUSING | Base Sum: GBP 450,000.00 | Indexation: BCIS (2021-01-01)

The Owner covenants with the Council to pay the remaining 50% balance of the Affordable Housing Commuted Sum (GBP 450,000 Index Linked in accordance with the BCIS Index) prior to the Occupation of the 100th Market Dwelling.

STANDARD SHEFFIELD S106 MODEL PROVISIONS (PAGE 19)

Clause 19.1: Late payment interest accrues at 4% above Bank of England base rate.

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STANDARD SHEFFIELD S106 MODEL PROVISIONS (PAGE 20)

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STANDARD SHEFFIELD S106 MODEL PROVISIONS (PAGE 21)

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STANDARD SHEFFIELD S106 MODEL PROVISIONS (PAGE 23)

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SCHEDULE OF DEVELOPER COVENANTS (21/04512/FUL)

Schedule 2, Paragraph 2.1 - Secondary School Places Expansion Contribution [OBL-21-04512-03]

Category: EDUCATION | Base Sum: GBP 285,000.00 | Indexation: RPI (2021-01-01)

Not to Occupy or permit the Occupation of more than 74 Dwellings until the Education Contribution of GBP 285,000 (Index Linked by RPI from January 2021) has been paid in full to the Council.

STANDARD SHEFFIELD S106 MODEL PROVISIONS (PAGE 25)

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STANDARD SHEFFIELD S106 MODEL PROVISIONS (PAGE 26)

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SCHEDULE OF DEVELOPER COVENANTS (21/04512/FUL)

Schedule 3, Paragraph 1.3 - River Don Corridor Biodiversity Net Gain & Pocket Park Sum [OBL-21-04512-04]

Category: OPEN_SPACE_AND_BIODIVERSITY | Base Sum: GBP 120,000.00 | Indexation: CPI (2021-01-01)

To pay the Open Space and River Don Corridor Enhancement Contribution of
GBP 120,000 (CPI Index Linked) prior to Occupation of the 180th Dwelling.

STANDARD SHEFFIELD S106 MODEL PROVISIONS (PAGE 32)

Clause 32.1: Late payment interest accrues at 4% above Bank of England base rate.

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STANDARD SHEFFIELD S106 MODEL PROVISIONS (PAGE 33)

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